

Membership Terms & Conditions

September 2024



énergie **fitness**
where you belong...

1 Definitions

“Administration or Joining Fee”	A one-off fee payable by you in order to commence your membership and is not refundable other than in the event of breach or negligence by us;
“Club”	The énergie Fitness Club you are joining;
“Club Rules” or “Rules of Membership”	The Club Rules relating to opening hours, use of facilities and your conduct within the Club;
“Commitment Period”	The period of time for which you have committed to being a member of the Club;
“Direct Debit Payment”	The Monthly Membership Fee paid via direct debit;
“General Manager”	The term General Manager can also relate to: Manager, Club Manager, Owner, Franchisee;
“GoCardless”	GoCardless Limited incorporated and registered in England and Wales with company number 07495895 whose registered office is at Sutton Yard, 65 Goswell Road, London, England, EC1V 7EN is the company we use who provide Direct Debit payment services to you and administers our agreement with you. GoCardless can be contacted on: GoCardless énergie fitness member line: 020 8338 9538 GoCardless énergie fitness email address: help@gocardless.com
“Health Commitment Statement”	Your health is your responsibility. The management and staff of énergie Fitness are passionate about empowering you to transform your life and to help you take every opportunity to enjoy our facilities. With this in mind, we have carefully considered what we can reasonably expect of each other and this is contained within the Health Commitment Statement that you would have read as part of your sign-up process;
“Home Club”	This is the principal and primary Club that the member attends
“Member”	You have agreed to become a member of the énergie Fitness Club and pay the relevant membership fees to énergie Fitness;
“Member’s Details”	The information recorded as part of the membership joining process used to complete your Direct Debit Payment and your membership;
“Monthly Membership Fee”	The amount you are required to pay monthly for a standard membership;
“Notices”	Notices from you to the Club must be in writing, preferably via email or, where available, via the members area of the website.
“Personal Trainer”	An individual certified to have a degree of knowledge of general fitness involved in exercise prescription and instruction. Predominantly, Personal Trainers motivate clients by setting goals and providing feedback and accountability to members.
“Reciprocal Membership”	Part of the WOW and EPIC Memberships only, Reciprocal membership allows the WOW or EPIC Member to visit any other énergie Fitness Club in the network

2 Principle Terms

- 2.1 This agreement is an agreement between you and the Home Club.
- 2.2 This agreement commences once you have indicated your acceptance either in the Home Club or in the Declaration section of the web sign up process. If you did not sign up on the club's premises you have 14 full days after signup to cancel this agreement for any reason, unless you have used the Club/visited the Club (see 9.1). To exercise this right, please cancel your membership via the online cancellation function ('Manage My Membership') within the members area of the website. We will email you to confirm your cancellation. If you exercise this right to cancel we will reimburse you the Administration or Joining Fee and Membership Fee payments received from you using the same means of payment you used for the initial transaction.
- 2.3 You will be entitled to all the rights and privileges exercisable for the type of membership chosen, subject to your timely payment of the fees and charges set out below and the successful processing of your Direct Debit instruction.
- 2.4 GoCardless provides Direct Debit payment services to you and administers our agreement with you, in consideration for which you agree to pay all the fees and charges associated with your Membership and as set out below to us via GoCardless as our agent.

3 Membership

- 3.1 Persons wishing to become members of the Club shall complete the membership sign up process at the Club, or online through the website. The Club reserves the right to reject any application for membership without giving any reason for so doing. By ticking the 'agree to Terms and Conditions' box on the screen during the sign up process the member agrees to comply with these Terms and Conditions of Membership and the Club Rules.
- 3.2 You will only be permitted to use the Club facilities provided your membership is current and fully paid up or you have made payment arrangements acceptable to the Club.
- 3.3 The minimum age to become a member is 16. "Home clubs" may permit 16 and 17 year olds to join online as well as in club. Where applicable, some clubs may disable the online joining function and request 16 and 17 year olds to join directly in club with a parent or guardian, this is solely at the discretion of the "home club". You may be required to provide ID on your first visit to verify your age.

4 Membership Categories

- 4.1 The Club may offer different categories of membership. Your choice of category on joining will determine the fees you pay and any restrictions that may apply to your use of Club facilities. You may change to any other available membership category by giving 30 days notice to the Club.
- 4.2 The Club reserves the right to alter the operating and where applicable, off-peak access hours of the Club. Where possible, the Club will always attempt to give at least 30 days' notice to all members.

- 4.3 If you have signed up online choosing a discounted membership (for example – Student) you must bring valid identification (for example – NUS card) on your first visit for verification purposes. Failure to do so will result in the Club having the right to change your membership category.
- 4.4 Reciprocal Membership is included as part of the WOW and EPIC Membership at participating clubs. Each WOW and EPIC member will have a designated home Club. This is the principal and primary Club that the member attends. If during any 4 week period a member visits another énergie Fitness Club more times than they visit their home Club, énergie reserves the right to transfer that member's membership to the more frequently used club.

5 Duration

- 5.1 When you join the Club you are agreeing to remain a member for a Commitment Period which will depend on which membership type you have chosen. Your membership will automatically continue on a rolling monthly basis following your Commitment Period requiring 30 days notice to terminate from your next scheduled payment date. If notice is given on your actual date of payment then the 30 days notice will serve from then.
- 5.2 A 'Rolling Contract' membership option means that your Commitment Period is your first month of membership. For example, if you join on 18th May 2024 then your Commitment Period will end on 17th June 2024.
- 5.3 If you have chosen a 'Contract' membership type then your commitment period will end after the length of time that you have contracted for. For example, if your membership type is a 12 month contract and you join on 18th May 2024 then your Commitment Period will end on 17th May 2025.
- 5.4 If you choose to pay your membership fees monthly via Direct Debit your Club membership will continue automatically after the Commitment Period end date.
- 5.5 If you choose to join the Club by paying your membership fee in advance your Club Membership will terminate automatically on expiry of the Commitment Period.

6 Fees

The Club will set the level of fees and reserves the right to change the level of fees from time to time. The following fees prevail:

- 6.1.1 Membership fee; the level of membership fees shall be determined according to the type and category of membership.
- 6.1.2 Administration or joining fee; an administration or joining fee is payable as specified during your sign-up process. Your administration or joining fee goes towards start-up costs.
- 6.1.3 Other Fees; all other fees and prices for the sale of goods at the Club, locker rental, solarium, bar/restaurant and any other services will be set by the Club from time to time.
- 6.2 Unless otherwise stated, the Club takes no responsibility for advance payments made to freelance Personal Trainers; In this instance, it is your responsibility to enter into an agreement with the freelance Personal Trainers. Clubs are not responsible or liable for any monies paid or monies owed including refunds for personal training services delivered by freelance Personal Trainers. In the event of any payment disputes the member will need to raise these directly with the Personal Trainer and their respective limited company.

- 6.3 Membership Fees and Administration or Joining Fees are not refundable by the Club under any circumstances save as provided for in 2.2 above.
- 6.4 Unless otherwise stated, pre-sale membership introductory offers (where applicable) will be valid for 3 months after the Club opening date. At the 3 month point, pre-sale introductory prices will automatically increase to the current relevant membership fee.
- 6.5 If your bank fails to make a due Direct Debit payment from your account, our Direct Debit collections agent will write to advise you of this. We may apply to your bank for payment by Direct Debit twice within one calendar month and we reserve the right to refer any missed due payments to a debt collection agency. An administration charge will be applied in respect of missed payments.
- 6.6 Should any membership fees not be paid within 30 days of the due date, the full membership fee for the remainder of the commitment period will automatically become due and payable in full.
- 6.7 Any unpaid and overdue membership fees referred to a debt collection agency will be subject to an administration charge to cover the collection costs incurred. This surcharge together with all other charges and legal fees incurred in the collection of the overdue membership fees will be the responsibility of the member and will be legally recoverable from the member.
- 6.8 All club membership fees and other fees are reviewed periodically. For any changes to the monthly fee we will give you at least 30 days notice.
- 6.9 We may charge a reasonable fee for any of the following: replacing lost membership cards/fobs, changing and/or updating membership category and transferring memberships.

7 Suspension of Membership ('Freezing')

- 7.1 A Member may, if he/she is unable to make use of the Club facilities and at the discretion of the Club, suspend his/her membership for one continuous period of at least 30 days and a maximum of 6 months (in any 12 month period). Written notice must be given to the Club (or where available, via the online 'freeze' function within the members area on the website). The Club shall have the right to request a doctor's certificate. A reduced monthly fee may be charged by the Club during the suspension of membership. Any suspension during the Commitment Period will extend the length of the Commitment Period by the length of the period your membership is put on hold.

8 Termination of your membership by the Club

We may terminate this agreement in the following circumstances:

- 8.1 If you commit a serious or repeated breach of this agreement or the Club's rules of membership and the breach, if capable of remedy, is not remedied within 7 days of receipt of a default notice;
- 8.2 If any part of your membership fee remains unpaid 30 days after its due date for payment;
- 8.3 If you provide us with details which you know to be false when applying for membership and the false declaration would have reasonably affected our decision to grant you membership;

- 8.4 If you engage in any illegal activity or activity which we deem to be unacceptable behaviour;
- 8.5 If we terminate for any of these reasons, we reserve the right to retain a proportion of the money paid under this agreement, to cover any reasonable costs incurred.

9 Termination by you, the Member (ending your membership)

- 9.1 Please note that if you completed your membership agreement whilst not in the club, you have a period of 14 days from sign-up in which to cancel this membership. This right to cancel will cease once you visit the club, or the period of 14 days has elapsed, whichever is the earlier.
- 9.2 After your commitment period (or within the last 30 days of your commitment period) you can end your membership by giving us notice. If, however, you wish to cancel your membership during the commitment period, you can do so if any of the following criteria are met and your request is made in writing accompanied by documentary evidence.
 - 9.2.1 Relocation: This agreement can be cancelled in the event that your new permanent address is more than 15 miles away from the facility upon receipt of a copy utility bill or bank statement showing the new address.
 - 9.2.2 Long term (over 3 months) illness or injury: This agreement may be cancelled in the event of an illness, injury or medical condition which in the written opinion of a doctor or other suitably qualified medical practitioner prohibits exercise for 3 months or longer upon appropriate proof being provided.
 - 9.2.3 Redundancy: This agreement can be cancelled upon appropriate proof of redundancy from your employer or other loss of livelihood.
 - 9.2.4 Pregnancy: This agreement can be cancelled if you become pregnant upon the appropriate written proof being given.

Please note – ANY Cancellation for the above reasons will not be affected until the appropriate proof is provided and received (in writing or via email) by the club.

- 9.3 Breach: This agreement can be cancelled if we are in breach of contract including if we do not provide facilities or services you may reasonably expect, and we have fallen well below that standard.
- 9.4 You can cancel your membership via the online cancellation function ('Manage My Membership') within the members area of the website. We will email you back to confirm your cancellation, if any further payments are due and until what date you will have access to the Club. Please ensure that confirmation is received.
- 9.5 Stopping paying your fees is not the same as giving notice. If you stop paying, but do not give us notice, you are still obligated to pay the fees. As mentioned above, we reserve the right to refer any missed payments to a debt collection agency. We, or our agents, may charge a fee for missed payments and/or letters sent to you in respect of unpaid amounts.

- 9.6 You need to give us 30 days' notice to cancel your membership from your next scheduled payment date. Any payment due during that period will be your last and your membership will continue for the period you have paid for. For example – if your membership payment usually comes out on the 10th of the month; you give written notice on 5th July; your payment on 10th July will be your last payment and you can use the club until 9th August.

10 Membership Access

- 10.1 Membership Access, in the form of card, fob, biometric, facial recognition or PIN code will be issued to all members upon joining the Club and is used to gain entry to the Club. Membership Access is not transferable. Any member allowing their access to be used by another person is in serious breach of these Membership Terms and Conditions and will entitle the Club to terminate membership without notice in accordance with Clause 8 above and without return of any prepaid membership charges.
- 10.2 If membership access is lost via the membership card or fob, it should be reported to the Club and the Club reserves the right to charge an administration fee for the provision of a replacement.

11 Club Rules

- 11.1 The Club may amend the Club Rules from time to time in order to ensure the health and safety of members. Temporary amendments will be displayed in the Club. Permanent changes to the Club Rules will only be made after at least 30 days' notice to members, except in the case of emergency.

12 Opening Hours

- 12.1 The Club's opening hours, as amended from time to time, are displayed at reception and/or door and are available on the website.
- 12.1.2 Your energie fitness club may choose to operate 24 hours a day for any number of days over the 7 day week, this is at the discretion of the "home club". In the event of being a member of a 24 hour club members will need to accept the relevant terms and conditions that are located in the member area.
- 12.2 The Club reserves the right to adjust the availability of certain facilities or close the Club on a temporary basis for the general purpose of cleaning, decorating, essential repairs, maintenance of equipment, special functions, staff training and holidays.
- 12.2.1 Membership refunds will not be made in the event of any ad-hoc closures due to maintenance issues.

13 Restriction of Liability

- 13.1 The Club will not accept liability for any loss, damage to or theft of money, valuables or other personal property of members and guests. Nor will the Club accept liability arising from acts or omissions of third parties such as Physiotherapists, massage therapists, beauticians, etc renting treatment rooms. This also applies to self-employed class instructors. Property stored in lockers provided by the Club is stored at the owner's risk and no liability for loss or damage thereto will be accepted by The Club.

14 Health & Safety

- 14.1 Members must read all Health and Safety notices displayed in the Club and comply with their recommendations.
- 14.2 The Club has a zero tolerance policy on the use, sale or purchase of illegal drugs or non-prescription steroids on the premises and reserves the right to eject, terminate and ban any member or guest contravening this.
- 14.3 Members must sign a Health Commitment Statement prior to using the facility which is part of the sign-up process when joining online; if unable to sign you must provide a doctor's note stating you are well enough to exercise.

15 Sale of Club

- 15.1 In the event of the sale or disposal of the Club to another company or to any other person we may transfer your membership to the new owner and you will continue as a member of the Club and continue to pay your membership fees provided no changes to these terms or the Club rules having a material adverse effect on your use of the Club are made by the new owner. Any such disposal will not affect your contractual or statutory rights.

16 Your Personal Data

- 16.1 Access to all personal data collected from you in connection with your membership is dealt with in accordance with the énergie Fitness Privacy Policy which can be downloaded from our website and the Data Protection Act 2018. Please note that the franchisee at the Club operates under licence from énergie Fitness and, as such, your personal data will be passed to énergie Fitness.

17 Changes and Amendments

- 17.1 énergie may amend the terms and conditions of this membership at any time by reasonable notice, including without limitation by posting revised terms on its website at the URL www.energiefitness.com/legal/. These amended terms and conditions shall be binding upon you.

18 Online Services

- 18.1 Your Home Club has access to certain additional digital services and content provided by Digitally Empowered Limited (company registration number 13443335 whose registered office is at Aurora House, Deltic Avenue, Milton Keynes, MK13 8LW), ("DEL").

By signing these terms and conditions, you will be entitled to access such services and content as part of your WOW or EPIC membership and have consented to GoCardless collecting the charges of DEL that are included in your Monthly Membership Fee and paying DEL.

- 18.2 You agree that DEL may:

- 18.2.1 Make minor changes to the digital content or services:

- To reflect changes in relevant laws and regulatory requirements; and
- To implement minor technical adjustments and improvements, for example to address a security threat.

- 18.2.2 Cease providing the digital content and services when you or your Home Club freeze or end the contract as described in clauses 7, 8 and 9 above.
- 18.2.3 DEL is not responsible for delays outside of its control. If DEL's supply of digital content and services is delayed by an event outside of its control then DEL will contact you as soon as possible to let you know and will take steps to minimise the effect of the delay. Provided DEL do this, DEL will not be liable for delays caused by the event.
- 18.2.4 DEL may need to suspend the supply of digital content or services to you to:
- Deal with technical problems or make minor technical changes;
 - Update the content or services to reflect changes in relevant laws and regulatory requirements.
- 18.2.5 Your rights if DEL suspend the supply of digital content or services. DEL will contact you in advance to tell you it will be suspending supply of the digital content or services, unless the problem is urgent or an emergency. If DEL has to suspend the digital content or services for 7 continuous working days in any 6 month period, DEL may elect not to charge you for digital content or services while they are suspended.
- 18.2.6 DEL may withdraw the digital content and services by writing to let you know that DEL is going to stop providing the digital content and services. DEL will let you know at least 14 days in advance of stopping the supply of the digital services and content and will refund any sums you have paid in advance as part of your Monthly membership Fee for digital content and services which will not be provided.
- 18.2.7 Price. The price for the digital content and services provided by DEL is included within your Monthly membership Fee.
- 18.2.8 How to tell us about problems. If you have any questions or complaints about digital content and services please contact your Home Club in the first instance who will contact DEL on your behalf.
- 18.2.9 Assignment. DEL may transfer its rights and obligations under these terms to another organisation.

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